

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                            |                           |                                                       |                                    |                                 |
|--------------------------------------------------|----------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Jeffrey Mulinelli (S)           | Team:<br>Squad #08                                                         | CCRB Case #:<br>201501386 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                            |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 02/26/2015 1:40 PM | Location of Incident:<br>3rd Avenue between East 32nd and East 33rd Street |                           | 18 Mo. SOL<br>8/26/2016                               |                                    | Precinct:<br>17                 |
| Date/Time CV Reported<br>Thu, 02/26/2015 2:15 PM | CV Reported At:<br>CCRB                                                    | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 02/26/2015 2:15 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. POM Adriano Deleon | 02580  | 940069 | 017 PCT |
| 2. POM John Lee       | 08411  | 942905 | 017 PCT |

| Officer(s)             | Allegation                                                            | Investigator Recommendation |
|------------------------|-----------------------------------------------------------------------|-----------------------------|
| A . POM Adriano Deleon | Abuse: PO Adriano Deleon threatened § 87(2)(b) with the use of force. | A . Unsubstantiated         |
| B . POM Adriano Deleon | Abuse: PO Adriano Deleon threatened to arrest § 87(2)(b)              | B . Exonerated              |
| § 87(4-b) § 87(2)(g)   |                                                                       |                             |

### Case Summary

At approximately 1:40 p.m. on February 26, 2015, PO Adriano Deleon and PO John Lee stopped § 87(2)(b)'s vehicle in the vicinity of 3<sup>rd</sup> Avenue and East 33<sup>rd</sup> Street in Manhattan. PO Deleon allegedly told § 87(2)(b) "Give me your license or I am going to pull you out of this car" (**Allegation A**). After a short discussion with § 87(2)(b) PO Deleon asked for § 87(2)(b)'s license again and allegedly stated, "Give me your license or I am going to pull you out of your car right now and arrest you" (**Allegation B**). § 87(2)(b) complied and was ultimately issued two summonses, § 87(2)(b).

### Mediation, Civil, and Criminal Histories

On April 22, 2015, a NOC inquiry was filed with the Office of the New York City Comptroller. Its results will be added to the case file upon receipt [encl. G7-G8].

§ 87(2)(b) declined the option to mediate this complaint.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by § 87(2)(b) [encl. B3].

PO Deleon has been a member of the service for nine years. There have been 4 other CCRB complaints against him with no substantiated allegations. Case 201502603 features an allegation of physical force. The recommended disposition is complainant uncooperative [encl. B1].

PO Lee has been a member of the service for eight years. There has been one previous CCRB complaint against him with no substantiated allegations [encl. B2].

### Investigative Findings and Recommendations

#### Allegation A) Abuse of Authority: PO Adriano Deleon threatened § 87(2)(b) with the use of force.

§ 87(2)(b) testified that PO Deleon cut him off in traffic heading northbound on Third Avenue. § 87(2)(b) blew his horn at PO Deleon's RMP, at which point PO Deleon pulled § 87(2)(b) over, approached his window, and asked why he had blown his horn at an officer. After a brief discussion, PO Deleon asked § 87(2)(b) for his license. § 87(2)(b) asked PO Deleon why he needed his license and PO Deleon allegedly stated, "Give me your license or I am going to pull you out of this car" [encl. C1-C7].

PO Deleon stated that he stopped § 87(2)(b)'s vehicle because § 87(2)(b) was honking his horn repeatedly. PO Deleon was unable to speak to § 87(2)(b) upon approaching his driver's side window because § 87(2)(b) was cursing at him immediately. PO Deleon asked § 87(2)(b) for his license, registration, and insurance and, according to PO Deleon, § 87(2)(b) said, "I'm not giving you shit." PO Deleon asked § 87(2)(b) for his license three times before telling him that he would have to arrest him if he did not provide his vehicle paperwork because there was no other way to identify who he was. PO Deleon denied telling § 87(2)(b) that he was going to forcibly remove him from his vehicle [encl. D8-D18].

PO Lee also testified that § 87(2)(b) was pulled over for excessive use of his car's horn. PO Deleon approached the driver's side, and PO Lee stood on the passenger's side of the vehicle. PO Lee heard PO Deleon ask § 87(2)(b) for his license several times and saw § 87(2)(b).

gesturing with his hands, but he did not hear PO Deleon threaten to pull § 87(2)(b) out of his car [encl. D1-D7].

The video obtained from a nearby McDonald's restaurant recorded a portion of the vehicle stop but did not contain audio. The video was also of poor quality in terms of determining any movement made during the car stop [encl. C8, IA #47].

§ 87(2)(g)  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED] It is therefore recommended that **allegation A** be closed as **unsubstantiated**.

**Allegation B) Abuse of Authority: PO Adriano Deleon threatened to arrest** § 87(2)(b)  
As mentioned above, § 87(2)(b) testified that PO Deleon asked for his license, and § 87(2)(b) asked PO Deleon why he needed it. PO Deleon threatened to pull § 87(2)(b) out of his car. § 87(2)(b) then told PO Deleon, "You must be out of your damn mind." PO Deleon responded, "Give me your license or I am going to pull you out of your car right now and arrest you." § 87(2)(b) then provided his license to PO Deleon [encl. C1-C7].

PO Deleon stated § 87(2)(b) raised his voice and cursed throughout the incident and failed to provide his license at PO Deleon's first three requests. PO Deleon then told § 87(2)(b) that if he did not provide his vehicle paperwork he would have to arrest him because there would be no other way to find out who he was [encl. D8-D18].

PO Lee denied hearing PO Deleon threaten to arrest § 87(2)(b) [encl. D1-D7].

"Telling an upset patron to calm or he will be arrested is hardly a threat, but rather a useful way to diffuse a potential physical confrontation." Police Department v. Cruz, OATH Index Nos. 304 & 310/98 [encl. A1-A23].

§ 87(2)(g)  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED] It is therefore recommended that **allegation B** be closed as **exonerated**.

§ 87(2)(g), § 87(4-b)  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

Pod: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date